

26CHCV00579 26CHCV00579

County: los-angeles

Division: Civil Law and Motion

Department: F51

Hearing date: 2026-09-18

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Case Number: 26CHCV00579 Hearing Date: September 18, 2026 Dept: F51

LOS ANGELES SUPERIOR COURT

NORTH VALLEY DISTRICT

DEPARTMENT F-51

SEPTEMBER 17, 2026

MOTION FOR CHANGE
OF VENUE

Los Angeles Superior Court Case
26CHCV00579

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Motion Filed: 4/15/26

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MOVING PARTY: Defendants Banc of California, fka
Pacific Western Bank; and Coastline RE Holdings Corp. (collectively, "Moving Defendants")

RESPONDING PARTY: Plaintiffs

Pierrick Brillouet, in pro per; and Yong C. Kim Brillouet, in pro per (collectively,
"Plaintiffs")

NOTICE: OK

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RELIEF REQUESTED: An
order transferring this action to the Superior Court of

Ventura County, California.

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TENTATIVE RULING: The motion is granted. The Court
orders this action to be transferred to Ventura County Superior Court.

REQUEST FOR JUDICIAL NOTICE: Moving Defendants'
request for judicial notice is granted as to Exhibit 2, and granted as to the
existence, but not the contents, of Exhibits 1 and 3–17.

Plaintiffs are reminded to review the 5/3/19 First Amended
General Order Re Mandatory Electronic Filing for Civil. When e-filing
documents, parties must comply with the "TECHNICAL REQUIREMENTS" which are set
forth at page 4, line 4 through page 5, line 12 of the Court's 5/3/19 First
Amended General Order Re Mandatory Electronic Filing for Civil (particularly bookmarking declarations and
exhibits). (CRC 3.1110(f)(4).) Failure to comply
with these requirements in the future may result in papers being rejected,
matters being placed off calendar, matters being continued so documents can be
resubmitted in compliance with these requirements, documents not being
considered and/or the imposition of sanctions.

BACKGROUND¿

This is a
wrongful foreclosure action in which Plaintiffs, who own certain residential
property located at 155 Buckskin Road/247 Bell Canyon Road, Bell Canyon,
California 91307, alleges that Defendants foreclosed on the property and
evicted the wrong party in 2014. (Compl. ¶¶ 1, 9.)

On 2/11/26,
Plaintiffs filed their complaint, alleging against four named Defendants the
following causes of action: (1) Wrongful Foreclosure; (2) Cancellation of
Instruments; (3) Quiet Title; (4) Violation of Civil Code §§ 2924, 2924(a)(6),

2924b, 2924c, 2923.5, 2924.17, 1434, 1436; (5) Slander of Title; (6) Violation of Business and Professions Code § 17200 et seq.; and (7) Declaratory Relief.

On 4/15/26,

Moving Defendants filed the instant motion. On 4/16/26, defendant R.E.F.S. Inc. filed a joinder thereto. On 9/4/26, Plaintiffs filed their opposition to the motion. On 9/11/26, Moving Defendants filed their reply.

ANALYSIS

“Subject

to the power of the court to transfer actions and proceedings as provided in this title, the superior court in the county where the real property that is the subject of the action, or some part thereof, is situated, is the proper court for the trial of the following actions: (1) For the recovery of real property, or of an estate or interest therein, or for the determination in any form, of that right or interest, and for injuries to real property. (2) For the foreclosure of all liens and mortgages on real property.” (Code Civ. Proc. § 392, subd. (a).) “The court may, on motion, change the place of trial ... When the court designated in the complaint is not the proper court.” (Code Civ. Proc. § 397, subd. (a).) If a defendant presents credible evidence that venue is improper, a judge must grant a change of venue absent a contrary showing by the plaintiff. (See *General Motors Corp. v. Superior Court* (1983) 141 Cal.App.3d 966, 970.)

Here, Moving Defendants request a change of venue to Ventura County because “this is a real property action, and the real property that is the subject of this action is located in Ventura County, not Los Angeles County.” (Defs.’ Mot. 4:5–6, citing Compl. ¶ 9.) “Moreover, each purported cause of action is ‘for the recovery of real property, or of an estate or interest therein, or for the determination in any form, of that right or interest, or for injuries to real property,’ within the meaning of Code of Civil Procedure section 392(a)(1).” (Id. at 8:7–9.) In support of their position, Moving Defendants proffer filings with the Ventura County Superior Court, including an underlying unlawful detainer action relating to the subject property, and the appellate record thereof. (Defs.’ RJN.)

In opposition, Plaintiffs argue that Moving Defendants should be judicially estopped from litigating the instant action in Ventura County because “these same two entities — arising out of this same Property and

the very same alleged quitclaim-and-bankruptcy scheme their own Motion describes ... previously elected to sue Plaintiffs in this very courthouse, the Los Angeles County Superior Court, North Valley District (Chatsworth), as plaintiffs, in *Coastline RE Holdings Corp., et al. v. Pierrick Brillouet, et al.*, Case No. PC057041, filed May 4, 2016 (the 'PC057041 Action')." (Pls.' Opp. 5:7–11.) Plaintiffs assert that Moving Defendants "have taken two positions: in 2016, that Los Angeles County was 'the proper court for the trial' of claims concerning this Property and this scheme; now, that Los Angeles County is not the proper court for materially overlapping claims concerning the same Property and the same scheme." (Id. at 11:18–22.) Plaintiffs therefore argue that "judicial economy and the interests of justice favor keeping this action where Defendants themselves chose to litigate the related PC057041 Action, not multiplying the forums in which this same foreclosure chain must be defended." (Id. at 13:27–14:2.)

In reply,

Moving Defendants argue that "Plaintiffs' Opposition confirms rather than refutes the facts that control the venue analysis. Plaintiffs do not dispute that the real property ... that is the subject of this action is located in Ventura County. Nor do Plaintiffs dispute that their Complaint seeks to set aside the 2014 foreclosure sale, cancel recorded instruments affecting title, restore title to Plaintiffs, quiet title to the Bell Canyon Property, and obtain judicial declarations concerning ownership interests in the Bell Canyon Property. Those allegations place this action squarely within Code of Civil Procedure section 392(a)(1), which governs actions involving the recovery of real property, interests in real property, and the determination of rights in real property." (Defs.' Reply 2:8–16.)

Moving

Defendants clarify that "the 2016 LASC Action involved different claims, different properties, and a different venue analysis. The action did not concern title to the Bell Canyon Property that is the subject of this lawsuit. Rather, the action arose from efforts to enforce money judgments obtained in the Ventura County unlawful detainer action. ... The fraudulent transfer claims involved separate properties located in Los Angeles County ... Those claims were asserted after abstracts of judgment had been recorded in Los Angeles County." (Id. at 4:2–10.) Moving Defendants therefore maintain that they are not judicially estopped from litigating the instant action in Ventura County because "Defendants have never asserted that disputes concerning title to the Bell Canyon Property belonged in Los Angeles County." (Id. at 4:24–25.)

Upon review

of the complaint in the 2016 action, LASC Case No.

PC057041, the Court agrees with Moving Defendants that the claims therein

related to voidable transfers of two properties located in Los Angeles County.

(Ex. B to Decl. of Pierrick Brillouet, ¶¶ 32–39.) The Court therefore agrees

with Moving Defendants that “the fact that venue was proper in Los Angeles

County for litigation involving Los Angeles County properties is entirely

consistent with Defendants’ position that venue is proper in Ventura County for

litigation involving the Bell Canyon Property.” (Defs.’ Reply 4:13–15.) Here, “Ventura

County is the county most directly connected to the Bell Canyon Property, the

foreclosure proceedings, and the extensive litigation history surrounding the

Bell Canyon Property.” (Id. at 6:11–12.)

Based on the foregoing, the Court finds that Moving

Defendants have presented competent evidence that Los Angeles County is the

improper venue for the instant action, and that Plaintiffs have failed to show

otherwise. Accordingly, the motion is granted.

CONCLUSION

The motion is granted. The Court orders this action to

be transferred to Ventura County Superior Court.